

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2026CUPT064344: IN THE MATTER OF: JOSEPH RAMIREZ
08/17/2026 in Department 21
Demurrer

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendant Google LLC’s Demurrer to Plaintiff’s First Amended Complaint

Tentative Ruling: Defendant Google LLC’s demurrer to Plaintiff Joseph Ramirez’s First Amended Complaint (“FAC”) is SUSTAINED with leave to amend.

The notice period was sufficient. Although Defendant served the self-represented Plaintiff by email and the record does not establish affirmative consent to electronic service, Plaintiff filed a substantive opposition without objecting to service or showing prejudice. Any defect therefore does not preclude consideration of the demurrer.

The meet-and-confer requirement is satisfied. Defendant attempted to confer regarding the FAC, and Plaintiff expressly declined. (Code Civ. Proc. § 430.41(a)(3)(B).)

On the merits, Plaintiff may represent himself but may not litigate the rights of the unidentified individual whose pseudonym and intimate imagery are at issue. (Bus. & Prof. Code, § 6125; *Drake v. Superior Court* (1994) 21 Cal.App.4th 1826, 1830-1832.) The principal relief sought (delisting the pseudonym, removing related search features, and preventing future indexing) concerns that nonparty’s interests.

Although Plaintiff alleges personal administrative burden, expense, emotional distress, and procedural injury, the FAC does not identify an independent substantive right belonging to Plaintiff that Google violated. Accordingly, the FAC fails to state a cause of action belonging to Plaintiff.

The claims as presently framed also fall within 47 U.S.C. § 230 because they seek to regulate Google’s indexing, display, removal, and delisting of third-party content. Plaintiff’s reliance on

Barnes v. Yahoo!, Inc. (9th Cir. 2009) 570 F.3d 1096 is unavailing because the FAC does not allege a specific individualized promise by Google comparable to the promise at issue in *Barnes*.

Similarly, the declaratory-relief claim fails because the FAC does not identify a substantive legal right or duty between Plaintiff and Google. The injunctive relief claim also fails because injunctive relief is a remedy, not an independent cause of action.

Leave to amend is granted because Plaintiff may be able to allege a substantive claim based on his own legally protected rights and a duty owed directly to him. Any amended pleading must be limited to Plaintiff's own claims and may not seek to enforce the unidentified nonparty's rights.

Plaintiff shall have 10 days from service of notice of this ruling to file and serve an amended pleading.

Counsel for Defendant to give notice.

Discussion:

Although Plaintiff characterizes the action as seeking relief for injuries he personally suffered in connection with Google's handling of NCII removal requests, the FAC does not presently allege a legally cognizable claim belonging to Plaintiff.

First, Defendant's unauthorized practice and standing arguments are related but should be considered separately. Plaintiff's prelitigation submission of NCII removal requests as an authorized representative does not itself establish the unauthorized practice of law. The issue arises from Plaintiff's attempt to obtain judicial relief concerning another person's rights. Business and Professions Code § 6125 provides that "[n]o person shall practice law in California unless the person is an active licensee of the State Bar." A non-attorney may represent himself but may not appear in propria persona to prosecute the legal interests of another. *Estate of Sanchez* (2023) 95 Cal.App.5th 331 illustrates the distinction: a representative could not proceed in propria persona with claims against third parties where the litigation was being prosecuted for the benefit of others.

Here, notwithstanding Plaintiff's characterization of certain consequential injuries as his own, the substantive relief sought principally concerns the unidentified nonparty. The FAC alleges that the pseudonym and intimate imagery belong to that individual and asks the Court to order Google to delist all search results associated with her pseudonym, remove autocomplete and related-search features tied to it, and prevent future indexing of URLs using the pseudonym to distribute intimate content. To the extent Plaintiff seeks judicial enforcement of the nonparty's privacy, likeness, or content-removal interests, he cannot prosecute those interests in propria persona.

The Court need not, however, conclude that Plaintiff categorically lacks "legal capacity to sue" under Code Civ. Proc. § 430.10(b). Plaintiff is an individual capable of asserting his own rights. The more precise problem is that he cannot represent the nonparty and is not the real party in interest as to rights belonging to her. Code Civ. Proc. § 367 requires that "[e]very action must be

prosecuted in the name of the real party in interest.” Thus, the unauthorized-practice issue forecloses Plaintiff from prosecuting the nonparty’s rights, while Code Civ. Proc. § 430.10(e) supplies a basis for testing whether the FAC states a claim belonging to Plaintiff. Code Civ. Proc. § 430.10(e) permits demurrer where “[t]he pleading does not state facts sufficient to constitute a cause of action.”

Plaintiff’s allegations of administrative burden, emotional distress, time, expense, and procedural injury do not cure this defect. Although those consequences are alleged to have been personally experienced by Plaintiff, they arose from his voluntary efforts to obtain removal of content concerning the nonparty. The FAC does not identify an independent substantive right belonging to Plaintiff that Google violated merely by processing those requests in the allegedly deficient manner. Plaintiff therefore has not adequately alleged that he is the real party in interest as to the rights and relief actually asserted.

Second, the FAC as presently pleaded is barred by 47 U.S.C. § 230 of the Communications Decency Act. The challenged content was created by third parties, and the principal relief sought would require Google to alter whether and how that content is indexed, displayed, removed, or delisted. Published California authority treats such decisions as traditional publishing functions protected by 47 U.S.C. § 230. *Prager University v. Google LLC* (2022) 85 Cal.App.5th 1022 explains that the relevant inquiry is whether the alleged duty derives from the defendant’s status or conduct as a publisher.

Plaintiff’s reliance on *Barnes v. Yahoo!, Inc.* (9th Cir. 2009) 570 F.3d 1096 does not save the present pleading. *Barnes* recognized that 47 U.S.C. § 230 may not bar liability arising from a sufficiently definite, independent promise made by the platform itself. But *Barnes* is persuasive rather than binding authority here, and published California decisions have applied its distinction. Most significantly, *Wozniak v. YouTube, LLC* (2024) 100 Cal.App.5th 893 held that generalized policies or public statements are materially different from the personalized, well-defined promise involved in *Barnes*.

The FAC alleges reliance on Google’s published NCII procedures and an asserted failure to provide a functioning removal process, but it does not allege that Google made Plaintiff a specific individualized promise to remove particular content, delist the pseudonym, or otherwise limit its editorial discretion. On the present allegations, therefore, the asserted duty remains tied to Google’s handling and removal of third-party content and falls within 47 U.S.C. § 230.

Third, the first cause of action for declaratory relief independently fails. The FAC alleges an “actual controversy” concerning Google’s continued indexing of the nonparty’s pseudonym and seeks a declaration that Google’s conduct constitutes a misuse of personal identifiers and a failure to provide a functioning NCII remedy. But the FAC identifies no contract, statute, or other substantive legal right creating a corresponding duty owed by Google to Plaintiff. Plaintiff expressly disclaims any direct cause of action under the Take It Down Act. Declaratory relief cannot independently create a substantive right that otherwise does not exist.

Fourth, the second cause of action for injunctive relief fails because injunctive relief is a remedy rather than an independent cause of action. Plaintiff argues in opposition that Defendant is

improperly demurring to his prayer for relief, but the FAC expressly denominates “Injunctive Relief” under Code Civ. Proc. § 526 as its second cause of action. Because the FAC presently states no viable underlying substantive claim, there is no cause of action upon which injunctive relief can rest.

Finally, Plaintiff’s opposition discusses negligence, promissory estoppel, and the UCL, but those causes of action are not pleaded in the FAC. Although a court considers the facts alleged rather than merely the labels attached to causes of action, the FAC does not presently allege the elements of any such claim, including a sufficiently definite promise or independent duty owed by Google to Plaintiff.

The Court shall nevertheless grant leave to amend. Plaintiff expressly requests leave and has articulated an intended theory based upon Google’s conduct toward him personally rather than solely upon the nonparty’s privacy interests. While Google’s general NCII policy alone would not appear sufficient under *Wozniak*, it cannot yet be concluded that Plaintiff is incapable of alleging additional facts establishing some specific promise or other legally cognizable duty running directly to him. Any amendment, however, is to be confined to Plaintiff’s own legally protected rights; Plaintiff may not prosecute the unidentified nonparty’s rights in propria persona.

Conclusion:

Defendant Google LLC’s demurrer is SUSTAINED with leave to amend.

Plaintiff shall have 10 days from service of notice of this ruling to file and serve an amended pleading.

Counsel for Defendant to give notice.